

103	2025-01534663 Beyene vs. Pavia	1. Application/Request 2. Case Management Conference Ilana Linder’s application for pro hac vice admission to represent Specially Appearing Defendant Sigma Pi Fraternity International, Inc. in this action is granted. The case management conference is continued to June 15, 2026 at 2:00 p.m. in Department C27. Moving party is ordered to give notice.
104	2025-01509518 Pate vs. Tesla, Inc.	1. Motion to Compel Arbitration 2. Case Management Conference The motion by Defendant Tesla, Inc. (“Defendant”) for an order compelling Plaintiff Cawana Pate (“Plaintiff”) to arbitrate their claims in accordance with Plaintiff’s arbitration agreement with Tesla and staying this action pending the outcome of the arbitration is granted. The case management conference is vacated. The Court sets a hearing regarding the status of arbitration for July 12, 2027 at 10:00 a.m. in Department C27. Defendant is ordered to give notice.
105	2025-01530454 Peloquin vs. Neighborhood Suites, LLC	1. Demurrer to Complaint 2. Motion to Strike Portions of Complaint 3. Case Management Conference The demurrer of defendant Oasis Haven Hospice, Inc. (“Defendant” or “Hospice”) to the complaint of plaintiffs Shirley Peloquin, by and through her successor in interest Jennifer Jackson, Jennifer Jackson, an individual, Ernest A. Peloquin II, an individual, Kelly Latislaw, an individual, and Phoebe Palmer, an individual is sustained in part and overruled in part. [ROA ## 27, 2] The demurrer is sustained with 15 days leave to amend as to the second cause of action; it is overruled as to the third cause of action. Defendant’s motion to strike is granted with 15 days leave to amend. Facts As alleged by Plaintiffs, their decedent, who was over 65, was admitted to defendant Neighborhood Suites, LLC (the “Facility”), a Residential Care Facility for the Elderly (“RCFE”), on 3/9/24 with advanced dementia. Although she was able to feed herself, she was unable to care for her other activities of daily living. [Complaint, ¶¶ 1, 7 and 27.] Plaintiffs’ decedent was noted to be nonambulatory and thus in need of assistance and supervision, as well as monitoring at night. [<i>Id.</i> , ¶ 28.] On 9/5/24, Plaintiffs’ decedent was seen by a physician who noted she had significant mobility issues due to having a right

knee replacement and left hip replacement in the past. She was noted to require the use of a walker to ambulate due to her unsteady gait. Having an unsteady gait is a well-known risk factor for falling, which should have put the Facility on notice of a fall risk factor that was not previously identified, requiring a reassessment of decedent. The Facility did not reassess. [*Id.*, ¶ 30.]

Ultimately, on 11/7/24, the physician referred Plaintiffs' decedent to hospice -Defendant Oasis Haven Hospice, Inc. ("Hospice") [*Id.*, ¶ 31.] The hospice certification period was between November 11, 2024 and January 9, 2025. [*Id.*, ¶ 32.]

The Hospice notes reflect that Plaintiffs' decedent had significant night-time needs and roamed a lot. [*Id.*, ¶¶ 33, 34.]

35. On December 2, 2024, at about 3:00 a.m., a FACILITY caregiver assisted Ms. PELOQUIN to the bathroom. While she was toileting, the caregiver left Ms. PELOQUIN to assist another resident. On December 2, 2024, at 3:00 a.m., there was only one caregiver on duty to care for all of the FACILITY's residents, which PLAINTIFF is informed and believes was at that time as many as six residents. While waiting for the caregiver to return, Ms. PELOQUIN, as was her prior predisposition, got up from the toilet and attempted to return to her bed. As she was ambulating without assistance towards her bed, she fell on her left side and fractured her hip.

36. Sometime later, the caregiver returned to Ms. PELOQUIN's room and found her on the floor in extreme pain. Instead of calling 911 or the FACILITY administrator, the caregiver moved Ms. PELOQUIN, with her fractured hip, into her bed and left her there in pain until 8:00 a.m. . . .

When informed of the fall, Hospice instructed the Facility to give Plaintiff's decedent Tylenol and wait for the Hospice nurse to arrive in the morning. "For nearly five hours, [Plaintiffs' decedent] was forced to endure extreme pain and suffering with a fractured hip while she lay helpless in her bed." *Id.* The Hospice nurse arrived at 8:00 a.m, but still no one called 911 or had Plaintiff's decedent taken to the hospital for further evaluation or medical care. [*Id.*, ¶¶36-37.]

An X-ray was finally done the afternoon of the *next day* and only then were Plaintiffs informed their decedent had been sitting in bed with a broken hip and in excruciating pain for 54 hours. Plaintiffs wanted further medical care but acceded to Hospices recommendation that their decedent remain at the Facility and no physician be called. [*Id.*, ¶ 38.] Plaintiffs now believe that that recommendation was made to hide Defendants' negligence.

After four days in pain, Plaintiffs' decedent died. The death certificate, signed by Hospice's medical director, listed only Alzheimer's as the cause – there was no mention of her fall or injuries. [*Id.*¶ 39.]

Demurrer

Legal Standard

A demurrer presents an issue of law regarding the sufficiency of the allegations set forth in the complaint. *Lambert v. Carneghi* (2008) 158 Cal.App.4th 1120, 1126. The challenge is limited to the "four corners" of the pleading (which includes exhibits attached and incorporated therein) or from matters outside the pleading which are judicially noticeable under Evidence Code §§ 451 or 452. Although California courts take a liberal view of

inartfully drawn complaints, it remains essential that a complaint set forth the actionable facts relied upon with sufficient precision to inform the defendant of what plaintiff is complaining, and what remedies are being sought. *Leek v. Cooper* (2011) 194 Cal.App.4th 399, 413.

As a general rule, a pleading is adequate if it contains a reasonably precise statement of the ultimate facts, in ordinary and concise language, and with sufficient detail to acquaint a defendant with the nature, source and extent of the claim. The degree of detail required depends on the extent to which the defendant in fairness needs such detail which can be conveniently provided by the plaintiff. Less particularity is required when the defendant ought to have co-extensive or superior knowledge of the facts. Under normal circumstances, there is no need for specificity in pleading evidentiary facts. However, bare conclusions of law are insufficient. Code Civ. Proc. §§ 425.10(a), 459; *Doe v. City of Los Angeles* (2007) 42 Cal. 4th 531, 549-50; *Zelig v. County of Los Angeles* (2002) 27 Cal. 4th 1112, 1126; *Doheny Park Terrace HOA v. Truck Ins. Exchange* (2005) 132 Cal. App. 4th 1076, 1098-99; *Berger v. California Insurance Guarantee Assn* (2005) 128 Cal. App. 4th 989, 1006.

Discussion

Second Cause of Action for Elder Abuse

A summary of the standards for The Elder Abuse Act was provided in *Carter v. Prime Healthcare Paradise Valley LLC* (2011) 198 Cal. App. 4th 396, which notes that the Act makes certain enhanced remedies available to a plaintiff who proves abuse of a “person residing in this state, 65 years of age or older.” *Id.* at 404; W & I Code § 15610.27. The Act defines abuse as physical abuse, *neglect*, financial abuse, abandonment, isolation, abduction, or other treatment with resulting physical harm or pain or mental suffering or deprivation by a care custodian of goods or services necessary to avoid physical harm or mental suffering. *Id.*, W & I Code § 15610.07(a), (b). It defines *neglect* as negligent failure of any person having care or custody of an elder to exercise the degree of care that a reasonable person in a like position would exercise, including failure to assist in personal hygiene, providing food, clothing, shelter or medical care for physical and mental health needs, to protect from health and safety hazards, or to prevent malnutrition or dehydration. *Id.*, § 15610.57(a)(1), (b).

In short, **neglect under the Elder Abuse Act refers “to the failure of those responsible for attending to the basic needs and comforts of elderly or dependent adults, regardless of their professional standing, to carry out their custodial obligations.”** *Carter* at 404, citing *Delaney v. Baker* (1999) 20 Cal. 4th 23, 34. Thus, when care of an elder is at issue, the statutory definition of neglect speaks not of the undertaking of services, but of the failure to provide care. *Covenant Care, Inc. v. Superior Court* (2004) 32 Cal. 4th 771, 783.

Neglect “requires a caretaking or custodial relationship that arises where an elder or dependent adult depends on another for the provision of some or all of his or her fundamental needs.” *Winn v. Pioneer Med. Group, Inc.* (2016) 63 Cal.4th 148, 160.

To establish conduct that constitutes neglect within the meaning of the Elder Abuse Act and trigger its enhanced remedies, the **plaintiff must allege** (and ultimately prove by clear and convincing evidence) **facts establishing that the defendant had responsibility for meeting the basic needs of the elder or dependent adult, such as nutrition, hydration, hygiene or medical care**, knew of conditions that made that person unable to provide for his or her own basic needs, and denied or withheld goods or services necessary to meet those needs either with knowledge that injury was substantially certain to befall them (if the plaintiff alleges oppression, fraud or malice) or with conscious disregard of the high

probability of such injury (if the plaintiff alleges recklessness). *Carter, supra*, at 406-07. The plaintiff must also allege (and ultimately prove by clear and convincing evidence) that the neglect caused the elder or dependent adult to suffer physical harm, pain or mental suffering. *Id.* Finally, **the facts constituting the neglect and establishing the causal link between the neglect and the injury must be pled with particularity in accordance with the pleading rules governing statutory claims.** *Carter, supra*, at 407.

Here, per Plaintiffs' allegations, the Facility rather than Hospice was responsible for attending to the basic needs of the decedent. Hospice's role, providing palliative care to Plaintiffs' decedent, is more analogous to that of a physician who treats an elder while she is in a facility, which courts have found does not give rise to a caretaking and custodial relationship. *Winn v. Pioneer Medical Group, Inc.*, 63 Cal.4th at 158-160, 164; *Oroville Hospital v. Superior Court* (2022) 74 Cal.App.5th 382, 404-406. See also *Frankland v. Etehad* (2025) 113 Cal.App.5th 503, 515-516 (finding physician who treated elder in facility did not have care and custody: "At most, the allegations here are sufficient to designate Dr. Etehad as a 'care custodian' because Dr. Etehad 'provid[es] care ... for elders' as a 'member[] of the support staff' of a private facility (§ 15610.17), but *Winn* explicitly holds that this designation is not enough by itself to establish the requisite robust caretaking or custodial relationship. (*Winn*, at p. 164, 202 Cal.Rptr.3d 447, 370 P.3d 1011; see also *Covenant Care*, at p. 786, 11 Cal.Rptr.3d 222, 86 P.3d 290 [claims under the Act 'are not brought against health care providers in their capacity as providers but, rather, against custodians and caregivers that abuse elders and that may or may not, incidentally, also be health care providers'].)").

Plaintiffs seek to avoid this distinction by pointing to their allegations that the Facility and Hospice were jointly owned and managed. [Complaint, ¶¶ 9-10, 24-25.]

In order to assert liability against Oasis for the actions of the Facility under a single enterprise theory, Plaintiff must allege (1) a unity of interest and ownership such that the separate entities have effectively ceased to exist, and (2) that respecting the separate identities would result in inequity or injustice. *Sonora Diamond Corp. v. Superior Court* (2000) 83 Cal.App.4th 523, 537-538; *Toho-Towa Co., Ltd. v. Morgan Creek* (2013) 217 Cal.App.4th 1096, 1108 n.4. To establish a joint venture theory, Plaintiffs must allege (1) two or more persons or business entities combine their property, skill, or knowledge with the intent to carry out a single business undertaking; (2) each has an ownership interest in the business; (3) they have joint control over the business, even if they agree to delegate control; and (4) they agree to share the profits and losses of the business. *Unruh-Haxton v. Regents of University of California* (2008) 162 Cal.App.4th 343, 370 ("Whether a joint venture actually exists depends on the intention of the parties.").

Plaintiffs do not allege facts establishing these elements but only the conclusions of these elements.

The demurrer to this cause of action is therefore sustained.

Third Cause of Action for Wrongful Death

"The elements of the cause of action for wrongful death are the tort (negligence or other wrongful act), the resulting death, and the damages, consisting of the pecuniary loss suffered by the heirs." *Quiroz v. Seventh Ave. Ctr.* (2006) 140 Cal.App.4th 1256, 1263.

Defendant Hospice contends that Plaintiffs fail to state a cause of action for wrongful death because they do not allege facts showing causation of any action or inaction by Hospice that led to Plaintiffs' decedent's death. But Plaintiffs allege that Hospice failed to

obtain medical care for the decedent after her fall – and even after it was confirmed Plaintiffs’ decedent had broken her hip. [Complaint, ¶¶ 36-39.] Reading the complaint liberally, as the Court must, this is sufficient.

The demurrer to this cause of action is therefore overruled.

Motion to Strike

A court may strike out any irrelevant, false, or improper matter inserted in any pleading or strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule or an order of the court. Code Civ. Proc. § 436. “Irrelevant” matters include: allegations not essential to the claim, allegations neither pertinent to nor supported by an otherwise sufficient claim or a demand for judgment requesting relief not support by the allegations of the complaint. Code Civ. Proc. § 431.10(b). A motion to strike can also strike legal conclusions. *Weil & Brown*, Cal. Prac. Guide, *Civil Proc. before Trial*, ¶ 7:179 (2010). Conclusory allegations are permitted, however, if they are supported by other factual allegations in the complaint. *Perkins v. Superior Court* (1981) 117 Cal.App.3d 1, 6.

Attorneys’ Fees

In the absence of an agreement for recovery of fees or a specific statutory provision, attorneys’ fees are not generally recoverable by the prevailing party in a lawsuit. *Trope v. Katz* (1995) 11 Cal. 4th 274, 278-79. Accordingly, in the absence of a basis for recovery, Plaintiffs’ prayer for attorneys’ fees is subject to being stricken. Such basis must appear on the face of the pleading or by matters that may properly be judicially noticed. Code Civ. Proc. § 431.10(b)(3).

Plaintiffs’ attorneys’ fees prayer is based on their elder abuse cause of action. As noted above, this claim fails.

Punitive Damages

Similarly, any claim for punitive damages based on the elder abuse claim would fail. But there remains the possibility of punitive damages under Civil Code section 3294, which provides that punitive damages may be awarded in an action for breach of an obligation not arising from contract, if the plaintiff proves by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice. “Malice” means conduct that is intended to cause injury or despicable conduct that is carried on with a willful and conscious disregard of the right and safety of others; “Oppression” means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights. Civ. Code § 3294(c)(1), (2).

At the pleading stage, the complaint must allege facts supporting circumstances of oppression, fraud, or malice. *See Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166 (“The mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages. [Citation] Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim. [Citation].”). A corporate defendant may not be liable for punitive damages based on the acts of its employees unless the plaintiff alleges and proves that an officer, director or managing agent of the corporation: (1) was personally guilty of oppression, fraud or malice; or (2) had advance knowledge of, authorized, or ratified the wrongful conduct for which the damages are awarded. Civ. Code § 3294(b).

Here, Plaintiffs have not alleged any acts of oppression, fraud or malice authorized or ratified by an officer, director or managing agent of Hospice. Plaintiffs point to their

	allegation that the owner of Hospice was notified of decedent’s fall and that she signed the death certificate that did not refer to the fall. [Complaint, ¶¶ 36, 39.] But Plaintiffs do not allege action, or inaction by this individual or that she was aware of the decisions of the Hospice nurse who is alleged to have arrived to care for Plaintiffs’ decedent after the fall. [See Complaint, ¶ 36.] The motion to strike is granted. The case management conference is continued to November 2, 2026 at 10:00 a.m. in Department C27. Moving party is ordered to give notice.
--	---